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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA  
COUNTY OF SAN FRANCISCO**

**Franciscus Dylan Rosario,**  
**PLAINTIFF,**

v.

Subhi Abdelhalim;  
CSAA Insurance Exchange;  
Carbone, Smith & Koyama, LLP;  
Michael R. Chambers;  
Phillips, Spallas & Angstadt LLP;  
Priya D. Navaratnasingham;  
Alberto Reyna;  
and DOES 1 through 20, inclusive;

**DEFENDANTS**

**Case No.: CGC-25-631801**

**NOTICE OF MOTION**

**TO TAX OR STRIKE COSTS**

**Hearing:** Date TBD / specially set

**Dept.:** 301

**Calendar:** CRC 3.1700(b)

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-  
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under California Rules of Court, rule 3.1700, subdivision (b); Code of Civil Procedure sections 1032 and 1033.5; Code of Civil Procedure section 1005, subdivision (b); Code of Civil Procedure section 1010; and California Rules of Court, rules 3.1110 and

1 3.1113.

2 3. The Clerk's authority to accept this paper is under Government Code sections 68150 and  
3 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and  
4 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court,  
5 rules 2.118 and 2.119; this paper does not present any of those grounds.

6 4. The Court's authority to consider the substance is under California Rules of Court, rule  
7 3.1700, and Code of Civil Procedure sections 1032 and 1033.5.

8 5. This paper is filed August 14, 2026, which is early and still timely under California Rules of  
9 Court, rule 3.1700, subdivision (b), following electronic service of Defendants' Memorandum of Costs (MC-010) on August 11, 2026, including any extension under Code of Civil  
10 Procedure section 1010.6.  
11

12 Hearing: Date TBD / specially set under CRC 3.1700(b). Do not merge this tax motion into the fee  
13 motion set for September 8, 2026, 9:00 a.m., Department 301 (ROA-confirmed; Tx 80309587; Do-  
14 cIDs 10369670, 10369671, 10369673; served August 11, 2026). Plaintiff opposes the fee motion  
15 and does not concede a stipulated date. Dept. 301. Hon. Christine Van Aken. Case No. CGC-25-  
16 631801.

## 17 NOTICE OF MOTION

18 TO DEFENDANTS CSAA INSURANCE EXCHANGE; CARBONE, SMITH & KOYAMA; AND  
19 MICHAEL R. CHAMBERS, AND TO THEIR ATTORNEYS OF RECORD:

20 PLEASE TAKE NOTICE that on the date and time set forth above, or as soon thereafter as the mat-  
21 ter may be heard in Department 301 of this Court, located at 400 McAllister Street, San Francisco,  
22 California, Plaintiff Franciscus Dylan Rosario will and hereby does move the Court, pursuant to  
23 California Rules of Court, rule 3.1700(b) and Code of Civil Procedure sections 1032 and 1033.5,  
24 for an order taxing, striking, reducing, or deferring entry of the costs claimed in Defendants' Mem-  
25 orandum of Costs (MC-010) dated August 11, 2026 (concurrent filing claimed in the O'Connell  
26 Declaration / fee MPA; **not separately docketed** as an ROA DocID among Tx 80309587 se-  
27 quences 201-203; do not invent an MC-010 DocID), claiming **\$1,137.46** total (**\$1,064.95** Line 1  
28 Filing and motion fees; **\$72.51** Line 5 Service of process).

1 This motion is made on the grounds that:

- 2 1. **Prematurity.** No judgment of dismissal has been observed on the August 12, 2026 Register  
3 of Actions (generated 1:06 p.m.) following the August 6, 2026 order granting the special  
4 motion to strike. A cost memorandum under CRC 3.1700(a) is premature if the triggering  
5 judgment or allowable triggering event has not occurred.
- 6 2. **Duplication.** The identical **\$1,137.46** is sought in Defendants' Motion for Attorneys' Fees  
7 and Costs under CCP section 425.16(c) set for September 8, 2026, 9:00 a.m., Department 301  
8 (ROA-confirmed; Tx 80309587; DocIDs 10369670, 10369671, 10369673; served August  
9 11, 2026). O'Connell Declaration paragraph 14 admits the MC-010 "will list the same cost  
10 amount sought here." MC-010 remains concurrent-filing claimed and not separately DocID'd  
11 on ROA among 201-203. Defendants cannot recover the same dollars twice.
- 12 3. **Item challenges.** The \$1,064.95 filing/motion aggregation includes vendor charges for CMC  
13 filings, notices of withdrawal, CourtCall ex parte appearance fees, and other events not shown  
14 to be allowable and necessarily incurred as costs of the special motion to strike. The \$72.51  
15 service line requires proof of allowability and necessity under CCP section 1033.5.
- 16 4. **Documentation.** To the extent any component remains undocumented or is overhead / non-  
17 allowable electronic-filing markup, it should be taxed or stricken.

18 This motion is based on this Notice; the Memorandum below; Plaintiff's concurrently filed Re-  
19 sponse and Objections to MC-010 (incorporated as supporting memorandum); the Declaration of  
20 Franciscus Dylan Rosario filed with the fee-opposition cohort as applicable; complete files and  
21 records in this action; and such argument as may be presented at hearing.

22 **Calendar:** CRC 3.1700(b) requires a motion to tax or strike costs within **15 days** after service of  
23 the cost memorandum. The claimed concurrent MC-010 was served electronically August 11, 2026  
24 (not separately DocID'd on ROA). These papers are filed and served August 14, 2026, which is  
25 early and still timely under that clock, including any CCP section 1010.6 two-court-day extension.  
26 Do not rely on the September 8, 2026 fee hearing (ROA-confirmed; Tx 80309587) as the tax-  
27 motion hearing date. Keep this motion TBD / specially set on the CRC 3.1700(b) service clock.

# MEMORANDUM OF POINTS AND AUTHORITIES

## I. INTRODUCTION

Defendants claimed a concurrent MC-010 (served / noticed August 11, 2026; not separately docketed as an ROA DocID among Tx 80309587 DocIDs 10369670/10369671/10369673) claiming **\$1,137.46** (\$1,064.95 filing and motion fees; \$72.51 service of process), together with a cost-detail printout totaling the same amount. The same dollars are demanded in the fee motion set for September 8, 2026, 9:00 a.m., Department 301 (ROA-confirmed; Tx 80309587; DocIDs 10369670, 10369671, 10369673; served August 11, 2026). Plaintiff moves to tax or strike under CRC 3.1700(b). Plaintiff's fuller narrative objections appear in the concurrently filed Response and Objections to MC-010 and are incorporated herein by reference.

## II. LEGAL STANDARD

A prevailing party may claim allowable costs under CCP sections 1032 and 1033.5 after the time prescribed by CRC 3.1700(a). Any party may move to tax or strike costs within 15 days after service of the cost memorandum. (CRC 3.1700(b).) The moving party may object to timing/prematurity, necessity, allowability, amount, and double recovery. Costs claimed without adequate documentation, or claimed twice through parallel vehicles, may be taxed or stricken.

## III. ARGUMENT

**A. Prematurity.** Through August 12, 2026, 1:06 p.m., the Register of Actions showed the August 6, 2026 strike order but no judgment-of-dismissal row. Plaintiff preserves the objection that the MC-010 is premature under CRC 3.1700(a) until a proper triggering judgment or other authorized event occurs. Plaintiff does not waive prematurity by addressing amount.

**B. Duplication of identical \$1,137.46.** Defendants' fee motion seeks the same \$1,137.46 as "costs" under section 425.16(c). The Court should strike the MC-010 in full, or strike it to \$0 to the extent the same dollars are pursued on the fee motion set for September 8, 2026, 9:00 a.m., Department 301 (ROA-confirmed; Tx 80309587; DocIDs 10369670, 10369671, 10369673), or defer entry until the fee motion is resolved with an express no-double-recovery order.

**C. Itemization / Line 1 (\$1,064.95).** Although a cost detail is attached, it aggregates e-filing

1 and related vendor charges that include CMC statement filing, notices of withdrawal, CourtCall  
2 ex parte fees, and multiple filings beyond the special motion to strike. Plaintiff objects to each  
3 nonallowable or unnecessary component and asks the Court to tax Line 1 to only those fees proved  
4 allowable under section 1033.5 and necessarily incurred.

5 **D. Line 5 (\$72.51).** Plaintiff objects pending proof that each service-of-process charge is allow-  
6 able, necessary, and not duplicative of amounts buried in Line 1 or in the fee motion.

7 **E. Fees motion is separate.** Line 10 of MC-010 (attorney fees) is blank. Statutory fees under  
8 section 425.16(c) require the separately noticed fee motion; nothing in this tax motion concedes  
9 fee entitlement.

#### 10 **IV. RELIEF REQUESTED**

11 Plaintiff requests that the Court:

- 12 1. Strike the MC-010 as premature; or
- 13 2. Tax, strike, or reduce the \$1,137.46 claim to \$0 based on duplication with the fee motion; or
- 14 3. Tax Line 1 and Line 5 to only those amounts proved allowable and necessary after item-level  
15 review;
- 16 4. Require Defendants to serve a verified reconciliation showing no double recovery with the  
17 fee motion noticed by Defendants for September 8, 2026;
- 18 5. Defer entry of costs until prematurity and duplication are resolved; and
- 19 6. Grant such other relief as is just.

20 Dated: August 14, 2026

21 

22 Franciscus Dylan Rosario  
23 Plaintiff, In Pro Per

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